

ADMINISTRATIVE TRIBUNALS

TRIBUNALISATION: SPECIALIST JUSTICE UNDER → ARTICLES 323A AND 323B → CAT JURISDICTION AND STATUTORY → CAT AND SAT INSTITUTIONAL → APPLICATION, PROCEDURE, POWERS AND → L. CHANDRA KUMAR (1997)

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • source generation g5 and all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 TRIBUNALISATION: SPECIALIST JUSTICE UNDER CONSTITUTIONAL SUPERVISION

SPECIALIST JUSTICE UNDER CONSTITUTIONAL SUPERVISION ROOT QUESTION CAN SPECIALIST ADJUDICATION IMPROVE ACCESS AND SPEED WITHOUT CREATING RATIONALE EXPERTISE FLEXIBLE PROCEDURE HIGH-VOLUME DISPOSAL GEOGRAPHICAL ACCESS LOWER COST.

ROOT QUESTION

Can specialist adjudication improve access and speed without creating executive-controlled courts?

RATIONALE expertise

flexible procedure

CONSTITUTIONAL BASIS / ARTICLE

- ROOT QUESTION
- Can specialist adjudication improve access and speed without creating executive-controlled courts?
- RATIONALE expertise
- flexible procedure

POWER / PROCEDURE

- high-volume disposal
- geographical access
- lower cost.
- CONSTITUTIONAL SOURCE

CHECK / LIMIT

- 42nd Amendment 1976 → Part XIVA → Articles 323A and 323B.
- STATUTORY SOURCE
- Administrative Tribunals Act 1985 → CAT and enabled SAT arrangements.
- NON-NEGOTIABLE FLOOR judicial independence + natural justice + reasoned order

FEDERAL / RIGHTS IMPACT

- High Court/Supreme Court constitutional review.
- MUST REMEMBER: Keep Article 323A administrative tribunals, Article 323B subject
- tribunals and the Administrative Tribunals Act, 1985 institutionally distinct.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: MUST REMEMBER: Keep Article 323A administrative tribunals, Article 323B subject tribunals and the Administrative Tribunals Act, 1985 institutionally distinct.

01

STAGE 01 ARTICLES 323A AND 323B COMPARED

ARTICLES 323A AND 323B COMPARED ARTICLE 323A PUBLIC-SERVICE RECRUITMENT AND SERVICE CONDITIONS. ADMINISTRATIVE-TRIBUNAL DESIGN. ARTICLE 323B LISTED SUBJECTS TAX, LABOUR, LAND REFORM, ELECTIONS AND OTHERS IN TEXT. APPROPRIATE LEGISLATURE WITHIN COMPETENCE. SUBJECT-SPECIFIC TRIBUNAL/HIERARCHY. COMMON HISTORY TEXT ALLOWED COURT EXCLUSION.

CONSTITUTIONAL BASIS / ARTICLE

ARTICLE 323A public-service recruitment and service conditions.
law-maker: Parliament.
administrative-tribunal design.

POWER / PROCEDURE

ARTICLE 323B listed subjects: tax, labour, land reform, elections and others in text.
law-maker: appropriate legislature within competence.
subject-specific tribunal/hierarchy.

CHECK / LIMIT

COMMON HISTORY text allowed court exclusion.
CURRENT LAW
L. Chandra Kumar (1997): Articles 226/227 and 32 judicial review is basic structure.

FEDERAL / RIGHTS IMPACT

TRAP enabling Article != automatic creation of a tribunal.

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 323A public-service recruitment and service conditions.
- law-maker: Parliament.
- administrative-tribunal design.

POWER / PROCEDURE

- ARTICLE 323B listed subjects: tax, labour, land reform, elections and others in text.
- law-maker: appropriate legislature within competence.
- subject-specific tribunal/hierarchy.

CHECK / LIMIT

- COMMON HISTORY text allowed court exclusion.
- CURRENT LAW
- L. Chandra Kumar (1997): Articles 226/227 and 32 judicial review is basic structure.

FEDERAL / RIGHTS IMPACT

- TRAP enabling Article != automatic creation of a tribunal.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP enabling Article != automatic creation of a tribunal.

02

STAGE 02 CAT JURISDICTION AND STATUTORY EXCLUSIONS

CAT JURISDICTION AND STATUTORY EXCLUSIONS SECTION 14 COVERAGE UNION RECRUITMENT AND SERVICE MATTERS NOTIFIED AUTHORITIES AND BODIES. SECTION 2 EXCLUSIONS ARMED FORCES SUPREME COURT OR HIGH COURT STAFF SECRETARIAL STAFF OF DEPARTMENTAL-REMEDY RULE PROCESS GATE COVERAGE

SECTION 14 COVERAGE

Union recruitment and service matters

notified authorities and bodies.

SECTION 2 EXCLUSIONS armed forces

CONSTITUTIONAL BASIS / ARTICLE

- SECTION 14 COVERAGE
- Union recruitment and service matters

POWER / PROCEDURE

- notified authorities and bodies.
- SECTION 2 EXCLUSIONS armed forces

CHECK / LIMIT

- Supreme Court or High Court staff secretarial staff of Parliament and State legislatures.
- PROCESS GATE coverage → departmental-remedy rule → limitation → Original Application.

FEDERAL / RIGHTS IMPACT

- TRAP public employment does not automatically create CAT jurisdiction.
- SECTION 14 COVERAGE

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP enabling Article != automatic creation of a tribunal.

02

STAGE 02 CAT JURISDICTION AND STATUTORY EXCLUSIONS

CAT JURISDICTION AND STATUTORY EXCLUSIONS

SECTION 14 COVERAGE

UNION RECRUITMENT AND SERVICE MATTERS

NOTIFIED AUTHORITIES AND BODIES.

SECTION 2 EXCLUSIONS ARMED FORCES

SUPREME COURT OR HIGH COURT STAFF SECRETARIAL STAFF OF

PROCESS GATE COVERAGE

DEPARTMENTAL-REMEDY RULE

SECTION 14 COVERAGE

Union recruitment and service matters

→ notified authorities and bodies.

→ SECTION 2 EXCLUSIONS armed forces

CONSTITUTIONAL BASIS / ARTICLE

- SECTION 14 COVERAGE
- Union recruitment and service matters

POWER / PROCEDURE

- notified authorities and bodies.
- SECTION 2 EXCLUSIONS armed forces

CHECK / LIMIT

- Supreme Court or High Court staff secretarial staff of Parliament and State legislatures.
- PROCESS GATE coverage → departmental-remedy rule → limitation → Original Application.

FEDERAL / RIGHTS IMPACT

- TRAP public employment does not automatically create CAT jurisdiction.
- SECTION 14 COVERAGE

MECHANISM / VERDICT — PROCESS GATE coverage → departmental-remedy rule → limitation → Original Application.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP public employment does not automatically create CAT jurisdiction.

03

STAGE 03 CAT AND SAT INSTITUTIONAL ARCHITECTURE

CAT AND SAT INSTITUTIONAL ARCHITECTURE

PRINCIPAL BENCH + NOTIFIED BENCHES

CHAIRPERSON + JUDICIAL MEMBERS + ADMINISTRATIVE MEMBERS UNDER CURRENT

JURISDICTION COVERED UNION RECRUITMENT/SERVICE MATTERS AND NOTIFIED BODIES.

STATE SERVICE TRIBUNAL MAY EXIST THROUGH STATUTORY ARRANGEMENT

STATES VARY AND SOME SATS HAVE BEEN ABOLISHED OR

EXCLUSIONS FOLLOW EXACT ADMINISTRATIVE TRIBUNALS ACT TEXT AND NOTIFICATIONS

NOT EVERY PUBLIC EMPLOYEE OR CONSTITUTIONAL OFFICE ENTERS CAT.

CONSTITUTIONAL BASIS / ARTICLE

- Principal Bench + notified benches
- Chairperson + Judicial Members + Administrative Members under current law.

POWER / PROCEDURE

- JURISDICTION covered Union recruitment/service matters and notified bodies.
- State service tribunal may exist through statutory arrangement

CHECK / LIMIT

- States vary and some SATs have been abolished or not constituted.
- EXCLUSIONS follow exact Administrative Tribunals Act text and notifications

FEDERAL / RIGHTS IMPACT

- not every public employee or constitutional office enters CAT.
- CONTROL appointments, tenure and service conditions must be stated with the 5 September 2026 caveat.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CONTROL appointments, tenure and service conditions must be stated with the 5 September 2026 caveat.

04

STAGE 04 APPLICATION, PROCEDURE, POWERS AND CONTEMPT

APPLICATION, PROCEDURE, POWERS AND CONTEMPT

PROCESS JURISDICTION CHECK

ORIGINAL APPLICATION

INTERIM ISSUE

REASONED FINAL ORDER.

PROCEDURE NATURAL JUSTICE

FLEXIBLE PROCEDURE

NOT RIGIDLY BOUND BY CPC.

PROCESS jurisdiction check → Original Application → notice/reply/record

→ interim issue → hearing → reasoned final order.

→ PROCEDURE natural justice

→ flexible procedure

→ not rigidly bound by CPC.

CONSTITUTIONAL BASIS / ARTICLE

- PROCESS jurisdiction check → Original Application → notice/reply/record
- interim issue → hearing → reasoned final order.
- PROCEDURE natural justice

POWER / PROCEDURE

- flexible procedure
- not rigidly bound by CPC.
- POWERS summons

CHECK / LIMIT

- review/other statutory powers.
- CONTEMPT statutory power subject to governing law and constitutional review.
- LIMIT procedural flexibility is not freedom from evidence, fairness, reasons or limitation rules.

FEDERAL / RIGHTS IMPACT

- flexible procedure

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT procedural flexibility is not freedom from evidence, fairness, reasons or limitation rules.

05

STAGE 05 L. CHANDRA KUMAR (1997) AND THE CORRECT REVIEW CHAIN

L. CHANDRA KUMAR (1997) AND THE CORRECT REVIEW CHAIN

ORIGINAL CONSTITUTIONAL DESIGN TRIBUNAL AS SUBSTITUTE FIRST-INSTANCE FORUM +

L. CHANDRA KUMAR (1997)

HIGH COURT ARTICLES 226/227 AND SUPREME COURT ARTICLE 32

EXCLUSION CLAUSES INVALID

TRIBUNALS MAY TEST VIRES OF SUBORDINATE LEGISLATION AND STATUTES

OPERATIVE CHAIN TRIBUNAL ORDER

TERRITORIAL HIGH COURT DIVISION BENCH

ORIGINAL CONSTITUTIONAL DESIGN tribunal as substitute first-instance forum + exclusion clauses.

→ L. Chandra Kumar (1997)

→ High Court Articles 226/227 and Supreme Court Article 32 review are basic structure

→ exclusion clauses invalid

→ tribunals may test vires of subordinate legislation and statutes except parent legislation limits.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- PROCESS jurisdiction check → Original Application → notice/reply/record - interim issue → hearing → reasoned final order. - PROCEDURE natural justice	- flexible procedure - not rigidly bound by CPC. - POWERS summons	- review/other statutory powers. - CONTEMPT statutory power subject to governing law and constitutional review. - LIMIT procedural flexibility is not freedom from evidence, fairness, reasons or limitation rules.	flexible procedure
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT procedural flexibility is not freedom from evidence, fairness, reasons or limitation rules.			

05

STAGE 05 L. CHANDRA KUMAR (1997) AND THE CORRECT REVIEW CHAIN			
L. CHANDRA KUMAR (1997) AND THE CORRECT REVIEW CHAIN	ORIGINAL CONSTITUTIONAL DESIGN TRIBUNAL AS SUBSTITUTE FIRST-INSTANCE FORUM +	L. CHANDRA KUMAR (1997)	HIGH COURT ARTICLES 226/227 AND SUPREME COURT ARTICLE 32
TRIBUNALS MAY TEST VIRES OF SUBORDINATE LEGISLATION AND STATUTES	OPERATIVE CHAIN TRIBUNAL ORDER	TERRITORIAL HIGH COURT DIVISION BENCH	EXCLUSION CLAUSES INVALID
ORIGINAL CONSTITUTIONAL DESIGN tribunal as substitute first-instance forum + exclusion clauses.	L. Chandra Kumar (1997)	High Court Articles 226/227 and Supreme Court Article 32 review are basic structure	exclusion clauses invalid
tribunals may test vires of subordinate legislation and statutes except parent legislation limits.			
CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- ORIGINAL CONSTITUTIONAL DESIGN tribunal as substitute first-instance forum + exclusion clauses. L. Chandra Kumar (1997) - High Court Articles 226/227 and Supreme Court Article 32 review are basic structure	- exclusion clauses invalid - tribunals may test vires of subordinate legislation and statutes except parent legislation limits. - OPERATIVE CHAIN tribunal order → territorial High Court Division Bench → Supreme Court constitutional route.	- TRAP routine direct appeal from CAT to Supreme Court is not the ordinary substitute for High Court review. - CLOSE DISTINCTION: Preserve L. - Chandra Kumar (1997)'s first-instance tribunal role together with Articles 226/227 review by the territorial High Court Division Bench.	exclusion clauses invalid
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP routine direct appeal from CAT to Supreme Court is not the ordinary substitute for High Court review.			

06

STAGE 06 TRIBUNAL-INDEPENDENCE DOCTRINE ACROSS FIVE DECISIONS			
TRIBUNAL-INDEPENDENCE DOCTRINE ACROSS FIVE DECISIONS	UNION OF INDIA V. R. GANDHI (2010) TRANSFERRED JUDICIAL	MADRAS BAR ASSOCIATION NTT (2014)	NATIONAL TAX TRIBUNAL DESIGN INVALIDATED; CORE JUDICIAL FUNCTIONS CANNOT
TRIBUNAL RULES SCRUTINISED; SELECTION AND TENURE SAFEGUARDS REINFORCED.	MADRAS BAR ASSOCIATION V (2021) SHORT TENURE, AGE AND	ROJER MATHEW V. SOUTH INDIAN BANK (2019)	MADRAS BAR ASSOCIATION IV (2020)
Union of India v. R. Gandhi (2010) transferred judicial work requires equivalent independence, qualifications and	Madras Bar Association NTT (2014)	National Tax Tribunal design invalidated; core judicial functions cannot be executive-dominated.	Madras Bar Association IV (2020)
Tribunal Rules scrutinised; selection and tenure safeguards reinforced.			
CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- Union of India v. R. Gandhi (2010) transferred judicial work requires equivalent independence, qualifications and safeguards. - Madras Bar Association NTT (2014) - National Tax Tribunal design invalidated; core judicial functions cannot be executive-dominated.	- Madras Bar Association IV (2020) - Tribunal Rules scrutinised; selection and tenure safeguards reinforced. - Madras Bar Association V (2021) short tenure, age and executive override defects invalidated in the 2021 ordinance/Act line.	- Rojer Mathew v. South Indian Bank (2019) - Finance Act/rules route and tribunal independence examined. - Madras Bar Association tribunal reforms (2025) reported 2025 INSC 1330 continues the constitutional control and directs institutional reform.	LIMIT service-condition detail remains date-sensitive; doctrine is stable, implementation is not.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT service-condition detail remains date-sensitive; doctrine is stable, implementation is not.			

07

STAGE 07 RATIONALISATION, ABOLITION AND ACCESS-TO-JUSTICE CONSEQUENCES			
RATIONALISATION, ABOLITION AND ACCESS-TO-JUSTICE CONSEQUENCES	2021 RATIONALISATION ABOLISH SPECIFIED APPELLATE BODIES	TRANSFER FUNCTIONS TO COURTS/OTHER FORUMS	COMMON SERVICE FRAMEWORK.
CLEARER APPEAL PATH.	POSSIBLE COST SPECIALISED EXPERTISE LOST	POSSIBLE GAIN less fragmentation	FEWER DUPLICATIVE BODIES
2021 RATIONALISATION abolish specified appellate bodies → transfer functions to courts/other forums	common service framework.	POSSIBLE GAIN less fragmentation	fewer duplicative bodies
clearer appeal path.			
CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
2021 RATIONALISATION abolish specified appellate bodies → transfer functions to courts/other forums - common service framework. - POSSIBLE GAIN less fragmentation	- fewer duplicative bodies - clearer appeal path. - POSSIBLE COST specialised expertise lost	- burden shifted to High Courts vacancies and transition delay - access becomes geographically harder. - SAT VARIATION abolition/merger differs by State and statute; no uniform live SAT map should be invented.	TEST pendency outcome + bench capacity + independence + user cost + transitional clarity.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TEST pendency outcome + bench capacity + independence + user cost + transitional clarity.			

07

STAGE 07 RATIONALISATION, ABOLITION AND ACCESS-TO-JUSTICE CONSEQUENCES

RATIONALISATION, ABOLITION AND ACCESS-TO-JUSTICE CONSEQUENCES

2021 RATIONALISATION ABOLISH SPECIFIED APPELLATE BODIES

TRANSFER FUNCTIONS TO COURTS/OTHER FORUMS

COMMON SERVICE FRAMEWORK.

POSSIBLE GAIN LESS FRAGMENTATION

FEWER DUPLICATIVE BODIES

CLEARER APPEAL PATH.

POSSIBLE COST SPECIALISED EXPERTISE LOST

2021 RATIONALISATION abolish specified appellate bodies → transfer functions to courts/other forums

common service framework.

POSSIBLE GAIN less fragmentation

fewer duplicative bodies

clearer appeal path.

CONSTITUTIONAL BASIS / ARTICLE

- 2021 RATIONALISATION abolish specified appellate bodies → transfer functions to courts/other forums
- common service framework.
- POSSIBLE GAIN less fragmentation

POWER / PROCEDURE

- fewer duplicative bodies
- clearer appeal path.
- POSSIBLE COST specialised expertise lost

CHECK / LIMIT

- burden shifted to High Courts vacancies and transition delay
- access becomes geographically harder.
- SAT VARIATION abolition/merger differs by State and statute; no uniform live SAT map should be invented.

FEDERAL / RIGHTS IMPACT

- TEST pendency outcome + bench capacity + independence + user cost + transitional clarity.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TEST pendency outcome + bench capacity + independence + user cost + transitional clarity.

08

STAGE 08 CAT, COURTS, COMMISSIONS AND ADR DISTINGUISHED

CAT, COURTS, COMMISSIONS AND ADR DISTINGUISHED

CAT STATUTORY SERVICE ADJUDICATION

BINDING REASONED ORDER

HIGH COURT REVIEW.

HIGH COURT CONSTITUTIONAL COURT

WRIT/SUPERVISORY JURISDICTION

BROAD PUBLIC-LAW CONTROL.

COMMISSION INVESTIGATION/ADVICE/REPORT UNLESS STATUTE GRANTS ADJUDICATORY POWER.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
CAT statutory service adjudication → binding reasoned order → High Court review.	COMMISSION investigation/advice/report unless statute grants adjudicatory power.	ARBITRATION consensual private adjudication → limited statutory challenge.	TRAP specialised does not automatically mean tribunal; binding does not automatically mean court.
HIGH COURT constitutional court → writ/supervisory jurisdiction → broad public-law control.	LOK ADALAT statutory settlement/conciliation → award based on compromise.	DEPARTMENTAL APPEAL administrative reconsideration → not independent judicial adjudication.	CAT statutory service adjudication → binding reasoned order → High Court review.

CONSTITUTIONAL BASIS / ARTICLE

- CAT statutory service adjudication → binding reasoned order → High Court review.
- HIGH COURT constitutional court → writ/supervisory jurisdiction → broad public-law control.

POWER / PROCEDURE

- COMMISSION investigation/advice/report unless statute grants adjudicatory power.
- LOK ADALAT statutory settlement/conciliation → award based on compromise.

CHECK / LIMIT

- ARBITRATION consensual private adjudication → limited statutory challenge.
- DEPARTMENTAL APPEAL administrative reconsideration → not independent judicial adjudication.

FEDERAL / RIGHTS IMPACT

- TRAP specialised does not automatically mean tribunal; binding does not automatically mean court.
- CAT statutory service adjudication → binding reasoned order → High Court review.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP specialised does not automatically mean tribunal; binding does not automatically mean court.

09

STAGE 09 CURRENT JUDICIAL AND LEGISLATIVE STATUS CONTROL

CURRENT JUDICIAL AND LEGISLATIVE STATUS CONTROL

19 NOVEMBER 2025

2025 INSC 1330 INVALIDATED SPECIFIED RE-ENACTED SERVICE-CONDITION DEFECTS AND

9 MARCH 2026 ORDER SPECIFIED INCUMBENT CONTINUITY UNTIL 8

AUGUST 2026 CAUTION ENACTMENT

OPERATIONAL COMMISSION.

USE GAZETTE COMMENCEMENT AND APPOINTMENT RECORDS BEFORE CLAIMING OPERATION.

CURRENT CONTROL

19 NOVEMBER 2025

2025 INSC 1330 invalidated specified re-enacted service-condition defects and directed a National Tribunals Commission.

9 MARCH 2026 ORDER specified incumbent continuity until 8 September 2026 or maximum age.

AUGUST 2026 CAUTION enactment != commencement != operational commission.

Use Gazette commencement and appointment records before claiming operation.

CONSTITUTIONAL BASIS / ARTICLE

- 19 NOVEMBER 2025
- 2025 INSC 1330 invalidated specified re-enacted service-condition defects and directed a National Tribunals Commission.

POWER / PROCEDURE

- 9 MARCH 2026 ORDER specified incumbent continuity until 8 September 2026 or maximum age.
- AUGUST 2026 CAUTION enactment != commencement != operational commission.

CHECK / LIMIT

- Use Gazette commencement and appointment records before claiming operation.
- CURRENT CONTROL: 5 SEPTEMBER 2026

FEDERAL / RIGHTS IMPACT

- 2025 INSC 1330 remains the merits baseline; the 9 March 2026 order continues specified incumbents only until 8 September 2026/maximum age.
- Parliament passed the Tribunals Reforms Bill, 2026, but no official assented Act or commencement notification was located; do not call it operative.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Parliament passed the Tribunals Reforms Bill, 2026, but no official assented Act or commencement notification was located; do not call it operative.

10

STAGE 10 EXACT PYQ DEMAND AND ANSWER ARCHITECTURE

EXACT PYQ DEMAND AND ANSWER ARCHITECTURE

2018 GS-II 15/250 COURT-JURISDICTION CURTAILMENT + VALIDITY + COMPETENCY.

2019 GS-II 10/150

CAT AS INDEPENDENT JUDICIAL AUTHORITY.

2024 GS-II 10/150

LOK ADALAT VERSUS ARBITRATION + CIVIL/CRIMINAL JURISDICTION.

2025 GS-II 10/150 NEED FOR TRIBUNALS + ASSESS 2021

EXECUTION THESIS

2018 GS-II 15/250 court-jurisdiction curtailment + validity + competency.

19 NOVEMBER 2025

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Use Gazette commencement and appointment records before claiming operation.

CONSTITUTIONAL BASIS / ARTICLE

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POWER / PROCEDURE

9 MARCH 2026 ORDER specified incumbent continuity until 8 September 2026 or maximum age.

AUGUST 2026 CAUTION enactment != commencement != operational commission.

CHECK / LIMIT

Use Gazette commencement and appointment records before claiming operation.

CURRENT CONTROL: 5 SEPTEMBER 2026

FEDERAL / RIGHTS IMPACT

2025 INSC 1330 remains the merits baseline; the 9 March 2026 order continues specified incumbents only until 8 September 2026/maximum age.

Parliament passed the Tribunals Reforms Bill, 2026, but no official assented Act or commencement notification was located; do not call it operative.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Parliament passed the Tribunals Reforms Bill, 2026, but no official assented Act or commencement notification was located; do not call it operative.

10

STAGE 10

EXACT PYQ DEMAND AND ANSWER ARCHITECTURE

EXACT PYQ DEMAND AND ANSWER ARCHITECTURE

2018 GS-II 15/250 COURT-JURISDICTION CURTAILMENT + VALIDITY + COMPETENCY.

2019 GS-II 10/150

CAT AS INDEPENDENT JUDICIAL AUTHORITY.

2024 GS-II 10/150

LOK ADALAT VERSUS ARBITRATION + CIVIL/CRIMINAL JURISDICTION.

2025 GS-II 10/150 NEED FOR TRIBUNALS + ASSESS 2021

EXECUTION THESIS

2018 GS-II 15/250 court-jurisdiction curtailment + validity + competency.

2019 GS-II 10/150

CAT as independent judicial authority.

2024 GS-II 10/150

CONSTITUTIONAL BASIS / ARTICLE

2018 GS-II 15/250 court-jurisdiction curtailment + validity + competency.

2019 GS-II 10/150

POWER / PROCEDURE

CAT as independent judicial authority.

2024 GS-II 10/150

CHECK / LIMIT

Lok Adalat versus arbitration + civil/criminal jurisdiction.

2025 GS-II 10/150 need for tribunals + assess 2021 rationalisation.

FEDERAL / RIGHTS IMPACT

EXECUTION thesis → law → mechanism → case → constraint → verdict.

2018 GS-II 15/250 court-jurisdiction curtailment + validity + competency.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: EXECUTION thesis → law → mechanism → case → constraint → verdict.

11

STAGE 11

UPSC SYNTHESIS AND REFORM ARCHITECTURE

UPSC SYNTHESIS AND REFORM ARCHITECTURE

PRELIMS FIREWALL

323A SERVICE

323B LISTED SUBJECTS

CONSTITUTIONAL COURT

ARBITRARY FIRST INSTANCE

FINAL CONSTITUTIONAL WORD

PENDENCY CURE.

PRELIMS FIREWALL

323A service != 323B listed subjects

enabling != creating

CAT != constitutional court

flexible != arbitrary first instance != final constitutional word

CONSTITUTIONAL BASIS / ARTICLE

PRELIMS FIREWALL

323A service != 323B listed subjects

enabling != creating

CAT != constitutional court

flexible != arbitrary first instance != final constitutional word

POWER / PROCEDURE

rationalisation != pendency cure.

MAINS SPINE rationale → constitutional/statutory source → structure/jurisdiction

procedure/powers → L. Chandra Kumar (1997) chain

independence cases → rationalisation/access → reform.

REFORM independent appointments body

CHECK / LIMIT

secure adequate tenure

transparent vacancies administrative autonomy

national data/standards

regional benches coherent appeals

periodic performance review without decisional interference.

FEDERAL / RIGHTS IMPACT

VERDICT tribunals are justified only as independent, accessible specialist courts under constitutional supervision.

LEGAL/SOURCE LIMIT: Parliament passed the Tribunals Reforms Bill, 2026, but no official

assented Act or commencement notification was located by 5 September 2026.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: VERDICT tribunals are justified only as independent, accessible specialist courts under constitutional supervision.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

S.P. SAMPATH KUMAR INITIALLY ACCEPTED TRIBUNAL SUBSTITUTION IF THE

L. CHANDRA KUMAR (1997) HELD THAT EXCLUSION OF HIGH

TRIBUNALS MAY DECIDE CONSTITUTIONAL QUESTIONS IN THE FIRST INSTANCE

THIS PROTECTS CONSTITUTIONAL SUPERVISION BUT ADDS ANOTHER TIER; SPEED

THE ACT RATIONALISED THE TRIBUNAL LANDSCAPE BY ABOLISHING SPECIFIED

IT ESTABLISHED A COMMON SERVICE-CONDITION FRAMEWORK FOR COVERED TRIBUNAL

THE SUPREME COURT'S MADRAS BAR ASSOCIATION LINE INSISTS THAT

OPTIONAL DOCTRINE / CASE

S.P. Sampath Kumar initially accepted tribunal substitution if the alternative

L. Chandra Kumar (1997) held that exclusion of High Court/Supreme Court judicial review

Tribunals may decide constitutional questions in the first instance, but their

CAUTION: This protects constitutional supervision but adds another tier; speed therefore

ADVANCED LIMIT

The Act rationalised the tribunal landscape by abolishing specified appellate

It established a common service-condition framework for covered tribunal

The Supreme Court's Madras Bar Association line insists that tribunal

On 19 Nov 2025 , the Supreme Court in 2025 INSC 1330 struck down the

COMPARATIVE NUANCE

On 9 Mar 2026 , the Court made a separate continuity arrangement extending

2025 GS-II Q2 (10 marks, 150 words): "Comment on the need of administrative

Thesis: Tribunals remain justified by specialisation, accessibility and potential

Structure: need - constitutional limits - 2021 rationalisation - gains and

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.